CITY OF LOS ANGELES CHARTER AMENDMENT PL

TITLE:
CITY PLANNING DEPARTMENT.

THE ISSUE:
Should the City Charter be amended to: establish a Neighborhood Appeals Commission to replace Area Planning Commissions; change how certain planning decisions are reviewed and approved; clarify the City Planning Department's authority for quasi-judicial applications; allow changes to floor area regulations by ordinance; and make related changes?

THE SITUATION:
The Charter establishes the powers and duties of key decisionmakers in planning and land use, including the City Planning Department, City Planning and Area Planning Commissions, Director of Planning, Office of Zoning Administration, City Council and Mayor.

THE PROPOSAL:
The measure would:

- Replace the seven Area Planning Commissions with a single Neighborhood Appeals Commission (NAC) with at least seven members;
- Authorize the newly-formed NAC with the power to hear administrative appeals and consider those appeals anew without deference to earlier decisionmakers, and decide other matters as provided by ordinance;
- Create additional procedural and timeline requirements for the City Council to assert jurisdiction in planning and land use matters;
- Specify in the Charter that the City Planning Department is responsible for quasi-judicial review as performed by designated City Planning Department staff authorized by ordinance, and as appointed by the Director of Planning;
- Remove sections related to certain land use approvals and delegated legislative authority;
- Provide that General Plan Amendments are approved if the City Council does not act within 75 days after earlier approvals; and
- Allow the City Council to change the current Floor Area Restriction by ordinance.

A YES VOTE MEANS:
You want to amend the Charter with the changes above regarding the City Planning Department.

A NO VOTE MEANS:
You do not want to amend the Charter with the changes above regarding the City Planning Department.

THE FULL TEXT OF THIS MEASURE BEGINS ON PAGE 40.

PL CITY PLANNING DEPARTMENT. CHARTER AMENDMENT PL.

Shall the City Charter be amended to: establish a Neighborhood Appeals Commission to replace Area Planning Commissions and establish a process for City Council review of Neighborhood Appeals Commission and City Planning Commission decisions; change the timing and process for City Council action on certain planning decisions; grant the Planning Department the authority to investigate, hear, and determine applications for quasi-judicial review; and allow for changes to floor area regulations by ordinance?

IMPARTIAL SUMMARY
BY SHARON M. TSO, CHIEF LEGISLATIVE ANALYST

This measure proposes changes to the City's planning and land use management. The measure would specify in the City Charter (Charter) the authorities and duties of the City Planning Department and Director of Planning, while concurrently modifying the authority of City Council to review planning and land use matters and replacing the seven Area Planning Commissions with a single new Neighborhood Appeals Commission.

The City governs planning and land use through the Charter (City's constitution) and ordinances (City laws). The Charter is the foundational document that establishes the powers and duties of key decisionmakers, which include the City Planning Department, City Planning Commission, Area Planning Commissions, Director of Planning, Office of Zoning Administration, the City Council and the Mayor. The Charter also establishes the processes and appeal rights for certain land use entitlements including General Plan Amendments, zone changes, variances, conditional use permits and similar quasi-judicial approvals.

This measure would:

- Replace the seven Area Planning Commissions (APCs) and their 35 Commissioners with a single, new Neighborhood Appeals Commission (NAC) with at least seven members, subject to qualification requirements concerning geographic or other representation to be defined by ordinance, and grant the NAC the power to hear administrative appeals and consider those appeals anew and without deference to earlier decisionmakers. This will eliminate the APC system that has been in place since the current Charter became effective in July 2000 and return the City to an oversight and decision-making structure that mirrors one that existed prior to 2000 which consisted of a single, five-member quasi-judicial body, the Board of Zoning Appeals.
- Specify in the Charter the responsibilities of the City Planning Department and Director of Planning by amending the Charter's section on the Office of Zoning Administration to grant the Department authority over quasi-judicial applications and the Director of Planning authority to appoint staff beyond the Office of Zoning

Administration to perform the duties of quasi-judicial review, as authorized by ordinance.

- Remove Charter sections that establish the processes and appeal rights for certain land use entitlements including General Plan Amendments, zone changes, variances, conditional use permits and similar quasi-judicial approvals, and delegation of legislative authority, thereby authorizing such matters to be governed by ordinance.
- Make changes to the existing process for City Council to assert jurisdiction in planning and land use matters. This measure will: (1) create a 30-day time limit for the City Planning Commission or Neighborhood Appeals Commission to concur with or dissent from City Council upon remand, after Council asserts jurisdiction; (2) require the Commissions' action on remand to be referred to City Council for a final vote; and (3) require City Council to act within 21 days or the action of the Commission becomes final. City Council's authority to assert jurisdiction in the planning and land use context is unique in that Council has the ability to act in place of the underlying Commission upon asserting jurisdiction.
- Deem General Plan Amendments automatically approved if City Council does not act within 75 days of approvals by the Mayor and City Planning Commission. This measure will: (1) replace current City law which provides for an automatic disapproval of the General Plan Amendment if the City Council does not take action on the matter, and (2) codify the 75-day time limit for City Council to act, which already exists in City law, in the Charter.
- Allow the City Council to change the Floor Area Restriction limitation by ordinance. The Charter currently imposes a floor area limit of 13 times the buildable area of a site.

This measure will become effective if approved by a majority of voters.

FINANCIAL IMPACT STATEMENT
BY MATTHEW W. SZABO, CITY ADMINISTRATIVE OFFICER

This measure will establish one Neighborhood Appeals Commission to replace the seven Area Planning Commissions; establish a process for City Council review of Neighborhood Appeals Commission and City Planning Commission decisions; change the timing and process for City Council action on certain planning decisions; grant the Planning Department the authority to investigate, hear, and determine applications for quasi-judicial review; and, allow the City Council to make changes to floor area regulations by ordinance. This measure is not anticipated to impact revenue. The annual administrative costs for commission staffing and resources are estimated to be reduced by $360,000 from $1.1 million to $740,000. The cost reduction would positively impact the Planning Case Processing Special Fund, which is subsidized by the General Fund.

ARGUMENT IN FAVOR OF CHARTER AMENDMENT PL

Los Angeles has experienced the consequences of a planning system in which individual land-use decisions can become entangled with politics. When the rules are unclear or decisions depend too heavily on political discretion, it creates opportunities for special interests to seek preferential treatment and undermines public confidence in City Hall.

Measure PL is an important step toward changing that.

Measure PL modernizes Los Angeles' planning system by establishing clearer rules, more consistent procedures, and greater accountability for how planning decisions are made.

The measure replaces the existing Area Planning Commissions with a Neighborhood Appeals Commission, creating a more consistent citywide process for hearing planning appeals. It also establishes clearer procedures for when the City Council may review decisions of the Neighborhood Appeals Commission and City Planning Commission and improves the process and timelines for Council action on certain planning matters.

Measure PL also empowers professional Planning Department staff to investigate, hear, and decide appropriate quasi-judicial applications, helping streamline routine planning decisions while maintaining avenues for public review and oversight. It also allows building density to be updated by ordinance, giving Los Angeles greater flexibility to respond to changing housing, development, and neighborhood needs.

These reforms will make our planning system easier to understand and more efficient to navigate for any resident. Just as importantly, clearer lines of authority and consistent procedures make it harder for anyone to manipulate the system for preferential treatment.

Measure PL preserves public participation and oversight while creating a planning system that is more transparent, predictable, and accountable.

Los Angeles residents deserve to know who makes planning decisions, how those decisions are made, and that everyone plays by the same rules.

Streamline planning. Increase transparency. Strengthen accountability. Fight corruption.

Vote YES on Measure PL.

PERSONS SIGNING ARGUMENT IN FAVOR OF CHARTER AMENDMENT PL

RAYMOND MEZA
Chair
Charter Reform Commission

ROY SAMAAN
President
Engineers & Architects Association

NO ARGUMENT AGAINST THIS MEASURE WAS SUBMITTED.

Arguments printed are the opinions of the authors and are not checked for accuracy by any City agency. In addition, the title beneath a signer's name is for identification purposes only and does not indicate that the individual is signing on behalf of the organization.

New provisions or language added to the Charter or to existing Charter sections are shown in underline type; words deleted from the Charter or from existing Charter sections are shown in ~~strikeout~~ type.

CHARTER AMENDMENT PL
(CITY PLANNING DEPARTMENT)

TEXT OF THE PROPOSED BALLOT MEASURE

Section 1. Subsection (e) of Section 104 of the Charter of the City of Los Angeles is amended to read as follows:

(e) **Floor Area Restriction**. The total floor area contained in all the buildings on any one building site shall not exceed 13 times the buildable area of the site, unless as otherwise provided by Council. ~~as such buildable area is defined by ordinance~~. The Council, by ordinance, may define and implement the provisions of this subsection and may ~~further restrict and~~ regulate the total floor area, buildable area, and height or bulk of buildings or structures.

Sec. 2. Subsection (e) or Section 245 of the Charter of the City of Los Angeles, regarding City Council veto of board actions, is amended to read as follows:

(e) **Exceptions for Actions of the City Planning Commission and Neighborhood Appeals Commission ~~Area Planning Commissions~~**. The Council shall not be limited to veto of actions of the City Planning Commission or Neighborhood Appeals Commission ~~Area Planning Commissions~~, but, subject to the time limits and other limitations of this section, after voting to bring the matter before it, shall have the same authority to act on a matter as that originally held by the City Planning Commission or Neighborhood Appeals Commission ~~Area Planning Commissions~~. If the Council vetoes and remands the matter, then the City Planning Commission or Neighborhood Appeals Commission shall have 30 days to take up the item again and concur or dissent. The action of the City Planning Commission or Neighborhood Appeals Commission on remand shall be presented to the Council in consideration of a final second vote on the matter by Council. Upon presentation of a final second vote, the Council shall have the same authority to act on a matter as that originally held by the City Planning Commission or Neighborhood Appeals Commission and must act, within 21 calendar days of said presentation, or the action of the City Planning Commission or Neighborhood Appeals Commission on remand becomes final. Calendar days that Council is in recess, arising from a Council-adopted recess schedule, shall be excluded from the 21 calendar days that Council has to act.

Sec. 3. Section 552 of the Charter of the City of Los Angeles is amended to read as follows:

Sec. 552. Neighborhood Appeals Commission. ~~Area Planning Commissions.~~

The Council shall adopt an ordinance creating a commission comprised of no fewer than seven members that considers appeals of quasi-judicial determinations made by the Department of City Planning. Members shall be appointed and removed in the same manner as members of the City Planning Commission, except that commissioner appointments shall be subject to qualification requirements concerning geographic or other representation as defined by ordinance. The Neighborhood Appeals Commission is a quasi-judicial agency, and shall have and exercise power to:

(a) hear and determine appeals of quasi-judicial determinations de novo, subject to procedures prescribed by ordinance; and

(b) hear and determine other matters delegated to it by ordinance.

~~The Council shall adopt an ordinance creating not less than five separate bodies to be known as Area Planning Commissions. The ordinance shall establish the boundaries of the area to be served by each Area Planning Commission, which shall be drawn so that all areas of the City are served by an Area Planning Commission. Each Area Planning Commission shall consist of five members. Members shall be appointed and removed in the same manner as members of the City Planning Commission, except that residency in the area served by the Area Planning Commission shall be a qualification for appointment. Except as provided in subsection (d), Area Planning Commissions are quasi-judicial agencies.~~

~~Each Area Planning Commission, with respect to matters concerning property located in the area served by the Area Planning Commission, shall have and exercise the power to:~~

~~(a) hear and determine appeals where it is alleged there is error or abuse of discretion in any order, requirement, decision, interpretation or other determination made by a Zoning Administrator;~~

~~(b) hear and make determinations on any matter normally under the jurisdiction of a Zoning Administrator when that matter has been transferred to the jurisdiction of the Area Planning Commission because the Zoning Administrator has failed to act within the time limits prescribed by ordinance;~~

~~(c) hear and determine applications for, or appeals related to, conditional use permits and other similar quasi-judicial approvals, in accordance with procedures prescribed by ordinance;~~

~~(d) make recommendations with respect to zone changes or similar matters referred to it from the City Planning Commission pursuant to Section 562; and~~

~~(e) hear and determine other matters delegated to it by ordinance.~~

Sec. 4. Subsection (e) of Section 555 of the Charter of the City of Los Angeles, regarding procedures for adoption the City's General Plan, is amended to read as follows:

(e) **Votes Necessary for Adoption**. If both the City Planning Commission and the Mayor recommend approval of a proposed amendment, the Council may adopt the amendment by a majority vote. If either the City Planning Commission or the Mayor recommends the disapproval of a proposed amendment, the Council may adopt the amendment only by a two-thirds vote. If both the City Planning Commission and the Mayor recommend the disapproval of a proposed amendment, the Council may adopt the amendment only by a three-fourths vote. If the Council proposes a modification of an amendment, the recommendations of the Commission and the Mayor on the modification shall affect only that modification. If the Council has not acted within 75 days of the Mayor's recommendation, and the proposed General Plan Amendment has received a recommendation of approval from both the City Planning Commission and the Mayor, then the amendment shall be deemed approved.

Sec. 5. Section 560 of the Charter of the City of Los Angeles is amended to read as follows:

Sec. 560. Hearings and Investigations.

The City Planning Commission and Neighborhood Appeals Commission ~~Area Planning~~

~~Commissions~~ may authorize the Director of Planning or his or her designee to conduct hearings on behalf of the commission. The Director of Planning shall make investigations relative to all matters provided for in Sections 555 and 558 as the City Planning Commission may direct and shall file reports with the City Planning Commission.

Sec. 6. Section 561 of the Charter of the City of Los Angeles is amended to read as follows:

Sec. 561. Quasi-Judicial Review ~~Office of Zoning Administration~~.

The Department of City Planning shall be responsible for the independent review and approval, conditional approval, or denial of quasi-judicial applications. The duties of quasi-judicial review shall be performed by designated City Planning staff, which shall include, but not be limited to, the Office of Zoning Administration, a Deputy Advisory Agency, and Hearing Officers, as authorized by ordinance, all of whom shall be appointed by the Director of Planning, subject to the civil service provisions of the Charter. Subject to rules and regulations as may be prescribed by ordinance, the Department of City Planning shall investigate, hear, and determine all applications for quasi-judicial review, and shall have other powers and duties with respect to zoning and land use determinations as prescribed by ordinance.

There shall be a quasi-judicial agency known as the Office of Zoning Administration. The duties of this office shall be performed by one or more Zoning Administrators as authorized by the Council, who shall be appointed by the Director of Planning subject to the civil service provisions of the Charter. If more than one Zoning Administrator is authorized, a position of Chief Zoning Administrator shall be established, the appointment to which shall be made by the Director of Planning, and the others shall be Associate Zoning Administrators. Subject to rules and regulations as may be prescribed by ordinance, the Office of Zoning Administration shall investigate and determine all applications for variances from any of the regulations and requirements of the zoning ordinances, and shall have other powers and duties with respect to zoning and land use as prescribed by ordinance.

The Council shall by ordinance provide time limits within which the Department of City Planning ~~a Zoning Administrator~~ must act for each type of case under its ~~his or her~~ jurisdiction. If no determination is made ~~by a Zoning Administrator~~ within the prescribed time, the applicant may request that the matter be transferred to the jurisdiction of the Neighborhood Appeals Commission ~~an Area Planning Commission~~ or other board as prescribed by ordinance.

The Chief Zoning Administrator may adopt rules necessary to carry out the requirements prescribed by ordinance and which are not in conflict or inconsistent with those ordinances. ~~All rules and regulations shall be available for inspection in accordance with the requirements of the California Public Records Act.~~

Sec. 7. Section 562 of the Charter of the City of Los Angeles is repealed as follows:

~~**Sec. 562. Variances.**~~

~~The Council shall prescribe by ordinance the procedures for the granting of variances subject to the following:~~

~~(a) Initial Hearing and Determination. All applications for variances shall be heard and determined by a Zoning Administrator except as otherwise provided in Section 564.~~

~~(b) Appeals Process. An aggrieved person may appeal a variance decision of the Zoning Administrator to the Area Planning Commission. The grant of a variance by the Area~~

~~Planning Commission may be further appealed to the City Planning Commission or Council as prescribed by ordinance. There shall be no further appeal from the decision of the Area Planning Commission to deny a variance. However, that action of the Area Planning Commission is subject to Council review pursuant to Section 245.~~

~~(c) Findings for Granting a Variance. The following findings shall be made before a variance may be granted:~~

~~(1) that the strict application of the provisions of the zoning ordinance would result in practical difficulties or unnecessary hardships inconsistent with the general purposes and intent of the zoning regulations;~~

~~(2) that there are special circumstances applicable to the subject property such as size, shape, topography, location or surroundings that do not apply generally to other property in the same zone and vicinity;~~

~~(3) that the variance is necessary for the preservation and enjoyment of a substantial property right or use generally possessed by other property in the same zone and vicinity but which, because of the special circumstances and practical difficulties or unnecessary hardships, is denied to the property in question;~~

~~(4) that the granting of the variance will not be materially detrimental to the public welfare, or injurious to the property or improvements in the same zone or vicinity in which the property is located; and~~

~~(5) that the granting of the variance will not adversely affect any element of the General Plan.~~

~~The grant of a variance may include conditions that will remedy a disparity of privileges and that are necessary to protect the public health, safety or welfare and assure compliance with the objectives of the General Plan and the purpose and intent of the zoning ordinance. A variance shall not be used to grant a special privilege or to permit a use substantially inconsistent with the limitations upon other properties in the same zone and vicinity. The Zoning Administrator may deny a variance if the conditions creating the need for the variance were self-imposed.~~

Sec. 8. Section 563 of the Charter of the City of Los Angeles is repealed as follows:

~~Sec. 563. Conditional Use Permits and Other Approvals.~~

~~(a) Subdivisions. The procedure for the approval of parcel maps, subdivision maps and other approvals granted pursuant to the State Subdivision Map Act shall be prescribed by ordinance.~~

~~(b) Conditional Use Permits and Other Similar Quasi-Judicial Approvals. The Council shall prescribe by ordinance the procedure for the granting of conditional use permits and similar quasi-judicial approvals subject to the following:~~

~~(1) Initial Determination. Applications for conditional use permits and similar quasi-judicial land use approvals shall be heard and determined either by the Zoning Administrator or Area Planning Commission as provided by ordinance. However, the City Planning Commission may adopt rules and regulations, subject to approval by ordinance, that identify classes or categories of quasi-judicial approvals that have citywide impact, and provide for those approvals to be heard and determined by the City Planning Commission instead of an Area Planning Commission.~~

~~(2) Appeals Process. An aggrieved person may appeal a decision of the Zoning Administrator with respect to a conditional use permit or similar quasi-judicial approval to the Area Planning Commission. Decisions of an Area Planning Commission, except those decisions made by the Area Planning Commission on appeal from a decision of the Zoning Administrator, may be appealed either to the City Planning Commission or Council, as provided by ordinance. However, the process for the approval of conditional use permits and similar quasi-judicial approvals may not include more than one level of appeal from the decision of a decision-making official or body. For purposes of this restriction:~~

~~(A) The use of hearing examiners or other methods by which recommendations are made to a decision-making official or body does not preclude an appeal from the decision of the decision-making official or body.~~

~~(B) If the Council is acting as the appellate body, the Council's action may be subject to Mayoral approval and Council override of Mayoral disapproval by a two-thirds vote of the Council, if so provided by ordinance.~~

~~(C) Council review of an action under Charter Section 245 shall not be considered an appeal for purposes of this section.~~

~~(D) The restrictions on appeals do not apply to any legislative actions.~~

Sec. 9. Section 564 of the Charter of the City of Los Angeles is repealed as follows:

~~Sec. 564. Projects Requiring Multiple Approvals.~~

~~If a project requires approvals by both the Zoning Administrator and either an Area Planning Commission or the City Planning Commission, those approvals that would otherwise be heard and determined by the Zoning Administrator shall be heard and determined by the Area Planning Commission or City Planning Commission, whichever has jurisdiction over the other approvals required for the project. Approvals for a project that requires both quasi-judicial and legislative actions shall be heard and determined by the City Planning Commission, except as provided in Section 565.~~

Sec. 10. Section 565 of the Charter of the City of Los Angeles is repealed as follows:

~~Sec. 565. Delegation of Legislative Authority to Area Planning Commissions.~~

~~The City Planning Commission may adopt rules and regulations, subject to approval by ordinance, identifying classes or categories of legislative actions for projects determined not to have citywide impact, and provide for action on those projects to be taken by an Area Planning Commission in lieu of the City Planning Commission.~~

Sec. 11. Severability. If any section, subsection, clause, sentence, phrase, or application of this Charter amendment or any portion thereof is held unconstitutional or invalid by any court or tribunal of competent jurisdiction, the remaining sections, subsections, clauses, sentences, phrases, portions, or applications of this Charter amendment shall remain in full force and effect, and to this end the provisions of this Charter amendment are severable. In addition, the voters declare that they would have passed all sections, subsections, clauses, sentences, phrases, portions, and applications of this Charter amendment without the section, subsection, clause, sentence, phrase, portion, or application held unconstitutional or invalid.